

SENATE No. 230

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act enhancing the podiatric profession's registration and oversight.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 230

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 230) of Paul R. Feeney for legislation to enhance the podiatric profession's registration and oversight. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 164 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act enhancing the podiatric profession's registration and oversight.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 13 of the General Laws is hereby amended by striking out sections
2 12A to 12C, inclusive, and inserting in place thereof the following sections:-

3 Section 12A. There shall be within the board of registration in medicine a board of
4 registration in podiatry, to be appointed by the governor, in this and in the following two sections
5 called the podiatry board, consisting of five members, citizens of the commonwealth, three of
6 whom shall have had at least seven years of practice in podiatry in this commonwealth. The
7 fourth member shall be a registered physician who shall have had at least seven years of practice
8 in medicine in this commonwealth. The fifth member shall be a representative of the public,
9 subject to the provisions of section 9B. No member of the board shall be connected in any way
10 with a school of podiatry or be financially interested in any manufacturing, wholesale or retail

business, pertaining to podiatry in any form whatsoever. As the term of a member expires, his successor shall be appointed by the governor, to serve for five years.

Section 12B. The podiatry board shall annually meet in the month of October at such time and place as it shall determine, and shall organize by electing a chairman and secretary, who shall be members of the podiatry board, and who shall hold their respective offices for one year. The podiatry board shall hold at least six additional meetings at such times and places as it shall determine or upon call of the chairman. Three members of the podiatry board shall constitute a quorum for the transaction of business.

Section 12C. The members of the podiatry board shall serve without compensation but shall be reimbursed for actual and necessary expenses reasonably incurred in the performances of their duties as members or on behalf of the podiatry board.

SECTION 2. Said chapter 13 is further amended by inserting after section 12C the following section:-

Section 12D. The board of registration in medicine in consultation with the commissioner of public health may review and approve rules and regulations proposed by the podiatry board. Such regulations will be deemed approved unless disapproved within ninety days of submission to the medicine board provided, however, that any such disapproval shall be in writing setting forth the reasons for such disapproval.

SECTION 3. Chapter 112 of the General Laws is hereby amended by striking out section 17A and inserting in place thereof the following section:-

31 Section 17A. The board shall keep a full record of its proceedings and a registry of all
32 persons registered by it, which shall be public records and open to inspection. Subject to the
33 provisions of section 12D of chapter 13, the board shall make such rules and regulations as may
34 be necessary for the proper conduct of its duties. It shall make an annual report, including a
35 statement of the condition of podiatry in the commonwealth.

36 The board shall investigate all complaints of the violation of any provision of sections
37 thirteen to twenty-two, inclusive, or of section sixty-five relative to podiatry, and report the same
38 to the proper prosecuting officers.

39 Said chapter 112 is further amended by inserting after section 17B the following
40 Section:-

41 Section 17C. The board shall promulgate regulations jointly with the board of
42 registration in medicine, and in consultation with the commissioner of public health, to ensure
43 that podiatrists under the board of registration in podiatry are subject to requirements
44 commensurate to those that physicians are subject to under the board of registration in medicine
45 pursuant to section 5 and sections 5A to 5M, inclusive, as they apply to the creation and public
46 dissemination of individual profiles and licensure restrictions, disciplinary actions and reports,
47 claims or reports of malpractice, communication with professional organizations, physical and
48 mental examinations, investigation of complaints and other aspects of professional conduct and
49 discipline.